

him or her through his or her mistake, inadvertence, surprise, or excusable neglect.

Code of Civil Procedure section 473 is a remedial statute to be “applied liberally” in favor of relief if the opposing party will not suffer prejudice. The law strongly favors trial and disposition on the merits. “Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 24, quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235). “Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980, citations omitted.)

The evidence, as set forth in the Declaration of Michelle Joyce, demonstrates that corporate defendants’ processes for handling service issues were insufficient here. The email “notification” from Corporation Service Company was apparently set up to go to someone uninvolved with this sort of matter. That person, in turn, used an “online platform” (Slack) to forward the documents to others. This sort of communication about important litigation documents lacks the level of formality this Court would typically expect. Perhaps as a result, these processes did not succeed in timely notice to the appropriate person(s), demonstrating organizational neglect in the handling of important litigation documents. Still, this does not amount to anything besides mistake, inadvertence, surprise, or excusable neglect.

Code of Civil Procedure 473 (b) provides, in relevant part (emphasis added):

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. *Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted*, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The timing here is not an issue. Corporate defendants acted promptly and within six months after their default had been entered. While plaintiff contends the showing does not show any neglect to be excusable, the Court resolves the issue in defendants’ favor.

Still, the procedural requirements of this motion have not been met. Corporate defendants attach a proposed motion to compel arbitration to their motion to set aside default, but “pleadings allowed in civil actions are *complaints, demurrers, answers, and cross-complaints*.” (Code Civ. Proc., § 422.10, emphasis added.) Having received no proposed “pleading,” the Court may not presently set aside the default.

Accordingly, so long as defendants submit a proposed pleading (in which they may assert a right to arbitration to counter any waiver argument), the Court intends to grant the motion. Should defendants fail to submit a proposed answer prior to the hearing, the Court will continue the hearing to allow more time for them to do so.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

15. 9:00 AM CASE NUMBER: C25-01327
CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CONLEY, DR. SARA
TENTATIVE RULING:

The motion to compel arbitration, filed by defendant, Dr. Sara Conley, appears to invoke an agreement signed with corporate defendant NOCD Florida Behavioral Health, P.A. (See Declaration of Matthew Thorne, Ex. A.)

Accordingly, a motion to compel arbitration in reliance on the agreement is best considered in conjunction with the anticipated motion by that defendant. Because NOCD Florida Behavioral Health, P.A. has made it clear that it intends to file such motion once its default is set aside (by attaching it to the Motion to Set Aside Default), the Court **re-sets the hearing date on this motion to March 26, 2026, 9:00 a.m.**, in order to permit both motions to be heard on the same date.

To avoid confusion and streamline the clerk's calendaring of the motions on the same date (March 26, 2026), corporate defendants (NOCD Florida Behavioral Health, P.A. and NOCD, Inc.) shall make reference to this order when filing their motion to compel arbitration.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

16. 9:00 AM CASE NUMBER: C25-01943
CASE NAME: ROGER BAILEY VS. SYNGENTA AG
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The **motion is granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

17. 9:00 AM CASE NUMBER: C25-02669
CASE NAME: CORINNE REES VS. SAMIR ROHAYEM
***HEARING ON MOTION IN RE: MANDATORY TRIAL SETTING PREFERENCE PURSUANT TO CAL. CIV. PROC. CODE 36**
FILED BY: ROHAYEM, SAMIR
TENTATIVE RULING:

The moving papers establish adequate grounds for mandatory preference and there is no opposition. Jury trial is set for April 5, 2026, 10:00 a.m., with an Issue conference March 20, 2026, 9:00 a.m. As of March 1, 2026, the matter is assigned for all purposes to Department 10, the Honorable Julia Campins.

18. 9:00 AM CASE NUMBER: MSC20-01863
CASE NAME: JACKSON VS ANOVA CENTER
***HEARING ON MINOR'S COMPROMISE**